



SPONSOR: Rep. K. Williams & Rep. Neal & Sen. Walsh
Reps. Morrison, Snyder-Hall, Ross Levin, Lambert,
Gorman, Chukwuocha, Berry, Griffith; Sens. Cruce,
Hansen, Sturgeon, Hoffner

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 131

AN ACT TO AMEND TITLES 6 AND 16 OF THE DELAWARE CODE RELATING TO PET STORES AND ANIMAL WELFARE.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Subtitle II, Title 6 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

Chapter 40A. RETAIL PET STORES

§ 4001A. Definitions.

For purposes of this chapter:

(1) “Animal rescue” means a nonprofit organization that is tax exempt under the United States Internal Revenue Code, 26 U.S.C. § 501(c)(3) as amended, whose mission and practice is the rescue and placement of animals into permanent homes. An “animal rescue” does not include an organization that obtains animals from breeders or brokers for compensation.

(2) “Animal shelter” means a public or private facility which includes a physical structure that provides temporary or permanent shelter to stray, abandoned, abused, or owner-surrendered animals and is operated, owned, or maintained by an incorporated humane society, animal welfare society, or other nonprofit organization for the purpose of providing for and promoting the welfare, protection, and humane treatment of animals. “Animal shelter” does not mean individuals providing temporary foster care to animals in their home or animal rescue groups sheltering animals on an individual’s private property.

(3) “Breeder” means any person who breeds and raises dogs or cats to sell, exchange, or otherwise transfer to the public. A “breeder” does not include an individual who sells a single litter of puppies or kittens or any part of a single litter during a calendar year. A “breeder” does not include an animal shelter, or animal rescue.

(4) “Broker” means a person, firm, corporation, or organization who transfers dogs or cats for resale by another person to be sold as household pets.

(5) “Consumer” means any person purchasing a dog or cat not for the purpose of resale.

(6) a. “Retail pet store” means any premises where domestic animals, to be kept as household pets, are sold, or offered or maintained for sale, on a retail basis. “Retail pet store” includes flea markets, farmer’s markets, and any temporary or permanent structures where domestic animals, to be kept as household pets, are sold or auctioned off for profit.

b. “Retail pet store” does not mean any of the following:

1. A premises that keeps, sells, or offers for sale domestic animals to be kept as household pets that are produced and raised on such premises and are sold, offered, or maintained for sale directly to a consumer, by a person who resides on such premises.

2. A premises that sells only a single litter of puppies or kittens or any part of a single litter during a calendar year.

3. An animal shelter or animal rescue.

§ 4002A. Retail Pet Stores; Prohibitions.

(a) A retail pet store or broker may not sell, lease, offer to sell, offer to lease, barter, auction, transfer ownership, or dispose of any cats or dogs.

(b) This section does not prohibit a retail pet store from collaborating with animal shelters or animal rescues to offer space for these entities to showcase cats or dogs for adoption. If a retail pet store collaborates with an animal shelter or animal rescue, the retail pet store owner or operator shall ensure the following:

(1) No animal provided by the animal shelter or animal rescue has been purchased by the animal shelter or animal rescue.

(2) The retail pet store owner or operator shall have no financial interest in the sale of the animals from the animal shelter or animal rescue.

§4003A. Violations.

(a) A retail pet store or broker that is in violation of this chapter shall receive a civil penalty of \$500. Each offer of an animal for sale in violation of this chapter is a separate violation.

(b) The Office of Animal Welfare within the Department of Health and Social Services shall enforce the provisions of this chapter pursuant to subchapter III of Chapter 30F of Title 16.

Section 2. Amend § 3031F, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3031F. Powers, duties, and functions of animal welfare officers of the Department of Health and Social Services and the Department of Agriculture [Effective Oct. 9, 2025].

(a) The Office of Animal Welfare within the Department of Health and Social Services shall enforce all animal cruelty laws in the State, except in cases of domestic agricultural animals specified in § 101(8) of Title 3, where the Department of Agriculture shall have primary enforcement authority. In cases of imminent danger, the Office of Animal Welfare and the Department of Agriculture shall have concurrent jurisdiction to seize and impound an animal and take any other necessary step to alleviate the imminent danger or preserve evidence.

(b) The Office of Animal Welfare within the Department of Health and Social Services shall enforce all dog control, dog barking laws, dangerous ~~dog~~ dog, retail pet store, and animal fighting laws, and laws concerning the maintenance of a dangerous animal in the State.

(c) The Office of Animal Welfare is a “law-enforcement agency” for purposes of § 8901B of Title 11 and any other purpose relating to communication and access to criminal justice information.

(d) Animal welfare officers of the Office of Animal Welfare or Department of Agriculture shall be trained and certified pursuant to § 122(3)bb. of this title.

(e) Animal welfare officers of the Office of Animal Welfare shall have the power to investigate, search, seize, detain and arrest when investigating and enforcing animal cruelty and fighting, dog control, dog barking, retail pet store, or dangerous animal laws.

(f) The Department of Agriculture shall have the power to investigate, search, seize and issue criminal summons when investigating and enforcing animal cruelty laws.

(g) Animal welfare officers of the Office of Animal Welfare and the Department of Agriculture shall have no police powers to investigate or enforce laws other than those related to animal cruelty or fighting, dog control, dog barking, retail pet store, or dangerous animal laws.

(h) Animal welfare officers of the Office of Animal Welfare or the Department of Agriculture shall not be permitted to carry firearms while on duty as such.

Section 3. Amend § 3033F, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3033F. Fines and penalties [Effective Oct. 9, 2025].

~~penalties.~~

All fines, penalties, and forfeitures ~~and forfeitures~~, imposed and collected in the State under every act relating to or affecting cruelty to animals, animal fighting, dog control, dog barking, retail pet stores, or dangerous animals, shall be remitted to the enforcing agency.

Section 4. Amend § 3034F, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3034F. Service of process.

Any warrant, subpoena, summons, or other process issued in relation to animal cruelty and fighting, dog control, retail pet store, or dangerous animal laws may be directed to and executed by any trained and certified animal welfare officer of the Office of Animal Welfare.

Section 5. Amend § 3041F, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3041F. Definitions.

As used in this subchapter:

(9) ~~“Retail dog outlet” means any premises where dogs are sold, or offered or maintained for sale, on a retail basis. “Retail dog outlet” does not mean any of the following:~~

~~a. Dogs which are produced and raised on such premises and are sold, or offered or maintained for sale, by a person who resides on such premises.~~

~~b. The selling of a single litter of puppies or any part thereof during a calendar year.~~

~~c. Any publicly operated or private, charitable, or nonprofit animal shelter, pound, humane society, or animal rescue organization. [Repealed]~~

Section 6. Amend § 3042F, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3042F. Fees for dog licenses; terms.

(a) *Dog licenses.* — The Department shall issue dog licenses and may, under § 3045F of this title, authorize agents to issue dog licenses. The Department shall provide applications for the following dog licenses, and may charge reasonable fees not to exceed the cost of administering this subchapter:

(1) *Individual dog owner licenses.* — The owner of any dog 6 months of age or older shall apply to the Department or its duly authorized agents on a form prescribed by the Department for an individual dog owner license for such dog. All individual dog owner licenses shall be valid from the date of purchase for a period of time which the Department shall determine.

~~(2) *Retail dog outlet licenses.* — Each owner of a retail dog outlet in the State must apply to the Department for a retail dog outlet license on an annual basis. A retail dog outlet license shall be valid for 1 year from the date of purchase.~~

(3) (2) *Kennel licenses.* — Any person who maintains a kennel wherein more than 4 dogs are kept for show, trial, sale, breeding, or other purposes may apply to the Department, or its agents authorized under § 3045F of this title, on a form prescribed by the Department for a kennel license in lieu of an individual dog owner license for each dog. Kennel licenses shall be valid for 1 year from the date of purchase.

(4) (3) *Replacement dog licenses or tags.* — The Department shall adopt a policy to issue a replacement individual dog owner ~~license, retail dog outlet license,~~ license or kennel license, or the tags accompanying such license, and shall set the fees for such replacement licenses or tags.

(5) ~~[Repealed.]~~

(b) Upon application and payment of the fee for an individual dog owner ~~license, retail dog outlet license,~~ license or kennel license, the applicant shall be entitled to receive a license, provided proof of a currently valid rabies vaccination, exemption certificate authorized under § 8204 of Title 3, or other documentation required by the Department can be presented for each dog for which the license is sought. Each individual dog owner ~~license, retail dog outlet license,~~ license and kennel license shall show the date on which the license fee is paid. The Department, or its agent authorized under § 3045F of this title, shall issue each license showing the year for which the license is paid and the serial number of the license. Each issued license must be accompanied by either a metal tag or an alternative method of identification, such as a microchip or tattoo. In the event a dog tag is issued, the tag shall be of a design to be adopted by the Department, and shall be affixed to the collar by the owner of such dog. Dog collars with associated state tags may be removed and need not be worn at all times when the dog is licensed under a kennel ~~or retail dog outlet~~ and is housed in an enclosure or a pen. If the collar has been removed, a valid dog tag and license must be readily available for review by an animal welfare officer as proof that the individual dog is licensed. Dogs engaged in the act of hunting are exempted from wearing tags while they are in the act of hunting, but individuals hunting with dogs must have some means of valid identification on the dog, and a valid dog tag and license must be available for review by an animal welfare officer while the dog is in the act of hunting.

(c) Whoever fails to secure a valid dog ~~license, retail dog outlet's license,~~ license or kennel license when required by this section shall be fined not less than \$50 and not more than \$500. For each subsequent offense occurring within 12 months of a prior offense, the person shall be fined not less than \$100 and not more than \$500. The minimum fine for a subsequent offense shall not be subject to suspension. Conviction for the failure to pay the license fee is a violation.

(d) The Department may revoke any individual dog owner ~~license, retail dog outlet license,~~ license or kennel license previously issued, and may deny any person the right to secure any such license for a period of time within the Department's discretion, if the licensee or person has been convicted of animal cruelty under the laws of Delaware or any state or federal law.

(e) The license fee set by the Department pursuant to subsection (a) of this section shall not be required to be paid when the dog is one which qualifies as a seeing-eye, lead, or guide dog or as a dog which has previously served in a branch of the United States armed forces. The Department shall issue either a metal license tag or an alternative method for identification in accordance with subsection (b) of this section for such dogs without the necessity of the payment of the dog license fee.

(f) ~~Individual, retail, Individual~~ or kennel licenses previously issued by a county or the City of Wilmington remain valid until their predetermined expiration dates.

(g) In accordance with Chapter 40A of Title 6, a retail pet store may not be granted a dog or kennel license and may not sell, transfer, or otherwise dispose of dogs. "Retail pet store" means as defined under § 4001A of Title 6.

Section 7. Amend § 3043F, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3043F. Inspections of facilities and premises; suspension of kennel ~~or retail dog outlet~~ license.

(a) Animal welfare officers are hereby authorized to inspect the facilities for which a kennel ~~or retail dog outlet~~ license is sought or obtained during normal business hours or by appointment for the purpose of ascertaining whether the facilities satisfy the requirements specified in § 3044F of this title for the humane handling, care and treatment of dogs. No person may refuse admittance to an animal welfare officer for the purpose of making inspections.

(b) Any animal welfare officer having probable cause to believe a violation of § 3044F of this title has or is taking place may enter upon the premises of the owner or custodian of any dog subject to such violation for purposes of investigating whether a violation of § 3044F of this title has occurred, provided that the investigation can be conducted without the animal welfare officer having to enter a dwelling house or other structure used in connection therewith. An animal welfare officer may enter into a dwelling house or other structure only under either of the following circumstances:

(1) With the permission of the owner or occupant of the dwelling house or other structure.

(2) Pursuant to a legally obtained search warrant.

(c) If, upon inspection or investigation, the premises or facilities are found not to satisfy the requirements specified in § 3044F of this title for the humane handling, care, and treatment of dogs, the operator of such premises or facilities shall be issued a warning identifying the deficiencies. Such operator shall have a warning period of a minimum of 10 business days to bring the premises or facility into compliance with § 3044F of this title, but the Department may extend the warning period by up to 60 days. If, upon expiration of the warning period, such premises or facilities have not been brought into compliance, the operator shall be fined in accordance with the terms specified in § 107(a) of this title. The Department may also issue an order suspending the kennel ~~license or retail dog outlet license~~, license, if any, until the cited

deficiencies are remedied. The licensee is entitled to an administrative review of such order as established by the Department in accordance with the Administrative Procedures Act (§ 10101 et seq. of Title 29).

(d) Whenever the Department suspends a license in accordance with this section, an animal welfare officer may seize and impound any dog in possession, custody, or care of the person whose license is suspended if there are reasonable grounds to believe that the dog's health, safety, or welfare is endangered.

Section 8. This Act takes effect 6 months after its enactment into law.

SYNOPSIS

This Act fosters the humane treatment of animals and prevents animal cruelty by prohibiting retail pet stores from selling dogs or cats. It further authorizes retail pet stores to collaborate with animal shelters and animal rescue organizations to offer space to showcase dogs or cats for adoption. The Office of Animal Welfare will be responsible for enforcing this Act. Retailers will receive a civil penalty of no more than \$500 for each prohibited sale.

This Act takes effect 6 months after its enactment into law.